

# Vice Chair St. Pierre's statements, measured against the record

Manchester Zoning Board of Adjustment, public hearing of September 10, 2026. Both cases heard the same evening, South Lincoln Street first.



Each substantive statement by the Vice Chair in each case is classified once, by hand, against the application file, the testimony given, and the Land Use Code. One entry per distinct assertion, question, or finding. Purely procedural remarks are excluded, as is the bare yes-or-no recitation of a statutory finding that adds no reasoning already counted — except where the recitation itself misstates the test, which is counted. A figure that can be derived from the City's own review sheet counts as grounded in the record even where no witness spoke it aloud. Every classified statement is listed with its timestamp on the pages that follow, so the counts can be audited line by line and re-argued where a reader disagrees. The Vice Chair states the findings in nearly every case from a fixed script — public interest, spirit, no one benefits more from a denial, values not diminished, literal enforcement a hardship “for the applicant” — recited that same evening at Delia Drive, Hanover Street, Thornton Street, Gold Street and Vinton Street. That recitation is excluded in both cases: it is a habit of the Board's practice, not something done to this applicant. The two totals differ because he spoke more at Titus Avenue. Source: the City's recording of the September 10, 2026 meeting, machine-transcribed, deliberations transcribed twice. Attributions rest on first names used on the recording and should be confirmed against the video.

# Scale of the relief requested

What each applicant asked the Board to set aside, on the same evening, under the same ordinance section §4.3-A.1.C.

## What was being added

Each measure is drawn to its own scale. Bars compare the two cases within a row, never across rows.

218 South Lincoln Street 26 Titus Avenue

### Ordinance sections relief was sought from



### Dwelling units added



### New principal buildings



### New building footprint, sq ft



### New floor area, all floors, sq ft



## Everything else

|                                   | 218 SOUTH LINCOLN STREET                         | 26 TITUS AVENUE                                           |
|-----------------------------------|--------------------------------------------------|-----------------------------------------------------------|
| Use sought in the district        | Two-family permitted by right; third unit sought | Only single-family detached permitted; multifamily sought |
| Building type                     | Existing building, compliant                     | Townhouse, not permitted in the district                  |
| Height                            | 2 stories where 2.5 allowed                      | 3 stories and 38 ft where 2.5 and 35 ft allowed           |
| Lot area against requirement      | 15,366 sq ft where 10,000 required — 154%        | 49,484 sq ft where 78,000 required — 63%                  |
| Broker's opinion in evidence      | Yes, a named broker                              | None                                                      |
| Case law cited in the application | Two decisions, applied to facts                  | None                                                      |
| Outcome                           | Denied, unanimously                              | Approved, 4 to 1                                          |

Figures from the City's Zoning Review sheets for each case and from the applications as submitted. South Lincoln: existing floor area 2,963 sq ft and footprint 1,823 sq ft, unchanged by the proposal, which adds one exterior door. Titus Avenue: footprint 5,760 plus 3,600 sq ft, total floor area 19,500 sq ft. Lot area percentages compare buildable lot area to the area the ordinance requires for the use proposed.

## Appendix — every statement counted, 26 Titus Avenue

Case ZBA2026-063. 32 statements. Timestamps are from the City's recording of September 10, 2026.

| TIME    | STATEMENT                                                                                                                                                                        | CLASSIFIED AS                                                                                              |
|---------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------|
| 1:20:06 | "in the redesign, you folks no longer need relief from dumpster location, townhouse parking drive, landscape or fence height?"                                                   |  Question               |
| 1:20:45 | "thank you for your work in preserving the buffers"                                                                                                                              |  In the record          |
| 1:20:47 | "your work to give the neighbors the 25 feet"                                                                                                                                    |  Contradicted           |
| 1:20:50 | "those will be left with the vegetation that's there undisturbed more or less" — confirming                                                                                      |  Question               |
| 1:55:45 | "one of the perennial things that we see in almost all of these cases is the trees and the cutting down"                                                                         |  In the record          |
| 1:55:55 | "as the applicant had beat me to — when folks are doing a single family, they can cut all those trees down"                                                                      |  In the record          |
| 1:56:02 | "some of the primary concerns that we hear over and over are addressed by the enforced buffer in a plan development such as this"                                                |  No source              |
| 1:56:07 | "I do think this property has some very unique characteristics"                                                                                                                  |  No source              |
| 1:56:10 | "18% of it has slope that's undevelopable by ordinance"                                                                                                                          |  In the record          |
| 1:56:13 | "by removing curb cuts into Calef, I think we improve safety tremendously"                                                                                                       |  No source              |
| 1:56:20 | "if they're allowed to do ... those five houses, is that more in benefit of safety? Is it more benefit of the neighbors, of the spirit?"                                         |  Wrong test             |
| 1:56:31 | "I think this area is a transitional area in that neighborhood"                                                                                                                  |  Wrong test             |
| 1:56:38 | "MX1, R1, any of the densities, they're not solely that. There are pieces that are exceptions"                                                                                   |  In the record          |
| 1:56:48 | "We see a large multi-dwelling unit here ... the school, an entire side of it is cemetery"                                                                                       |  In the record          |
| 1:57:00 | "the added buffers proposed here do create a reasonable buffer of landscape to the other properties"                                                                             |  No source              |
| 1:57:04 | "I don't think we've ever seen in my years on zoning another instance of properties that organically have such a large buffer"                                                   |  Expertise — as proof   |
| 1:57:18 | "I do believe this is the best plan for this lot"                                                                                                                                |  Wrong test           |
| 1:57:22 | "It is singularly unique in its size at 1.1 acre"                                                                                                                                |  Contradicted         |
| 1:57:28 | "the buffers create a lot of alleviation to the problems we have"                                                                                                                |  No source            |
| 1:57:31 | "a lot of the other problems are addressed in the plan review process"                                                                                                           |  In the record        |
| 1:57:48 | Findings: "It's a tremendously unique lot at 1.1 acres"                                                                                                                          |  Contradicted         |
| 1:57:52 | Findings: "a lot of slopes including 18% that is undevelopable based on the city's calculation of the slope review"                                                              |  In the record        |
| 1:57:58 | Findings: "the quieting of title on the paper street creates additional buffers ... whether through the applicant or the other neighbours' efforts"                              |  Contradicted         |
| 1:58:08 | Findings: "there are additional buffers then beyond what the plan development requires in itself"                                                                                |  No source            |
| 1:58:15 | Findings: "it reduces the need for curb cuts on Calef Road"                                                                                                                      |  In the record        |
| 1:58:18 | Findings: "and preserves existing on street parking"                                                                                                                             |  Contradicted         |
| 1:58:26 | Findings: the entrance is "off of Titus Avenue, which is in general safer to turn on to than the busier Calef"                                                                   |  No source            |
| 1:58:54 | Findings: "several other mixed or high density uses including the large development to the south, the cemetery and the Zion School"                                              |  Contradicted         |
| 1:59:02 | Findings: "Also, I am a real estate broker"                                                                                                                                      |  Expertise — as proof |
| 1:59:07 | Findings: "I'm not aware of any circumstance where a development of this nature in Manchester has diminished a property around it. I've never seen a report or evidence of that" |  Expertise — as proof |
| 1:59:16 | Findings: "In general, reasonably well thought out development increases values"                                                                                                 |  Expertise — as proof |
| 1:59:18 | Findings: "a tremendous amount of thought has been put into this, further evidenced by the applicant taking an additional month to rework and reduce counts"                     |  Wrong test           |

## Appendix — every statement counted, 218 South Lincoln Street

Case ZBA2026-055, heard immediately before Titus Avenue the same evening. 27 statements.

| TIME    | STATEMENT                                                                                                                                                                 | CLASSIFIED AS                                                                                           |
|---------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------|
| 0:33:51 | "The three panels, though, it's house unit one and unit two, correct? So you need four at a third unit?"                                                                  |  Question            |
| 0:36:24 | "So that's not owner-occupied as you're presenting?"                                                                                                                      |  Question            |
| 0:36:30 | "Anything can or will be, but that's not what it is"                                                                                                                      |  In the record       |
| 0:36:38 | "what was the reason that it was allowed to degrade to its current state?"                                                                                                |  Question            |
| 1:00:04 | "The inability to subdivide's not a hardship, it's absurd"                                                                                                                |  In the record       |
| 1:00:13 | "we have to remember that this was submitted under the old zoning ... this neighborhood was R2"                                                                           |  In the record       |
| 1:00:20 | "the specific spirit of that ordinance was a mix of single and duplexes"                                                                                                  |  In the record       |
| 1:00:26 | "when we look at the applicant's own exhibit, they've submitted that there's 41 singles, five two families, and one three"                                                |  In the record       |
| 1:00:35 | "this is clearly out of the spirit of the ordinance by definition"                                                                                                        |  In the record       |
| 1:00:38 | "it's also not in keeping with the character of this neighborhood"                                                                                                        |  In the record       |
| 1:00:46 | "I just don't see how creating the extra unit here is meeting the spirit of that or creating substantial justice to the neighbors"                                        |  In the record       |
| 1:00:59 | "there's no evidence that this was ever intended to be a third"                                                                                                           |  In the record       |
| 1:01:06 | "a house panel's gonna be needed to operate the one boiler system with the multi-zone, so that's not gonna fly with me either"                                            |  Expertise — against |
| 1:01:15 | "just the fact that they overbuilt this house, which has been stated that the applicant had their own hand in, that's not a hardship"                                     |  In the record       |
| 1:01:21 | "if it is to be considered it's self-created"                                                                                                                             |  In the record       |
| 1:01:24 | "there's no evidence here in my mind that the spirit's observed or any substantial justice is done, let alone a hardship"                                                 |  In the record      |
| 1:01:41 | "it's existed as a two family for well over 50 years ... that kinda mutes that point in my book"                                                                          |  In the record     |
| 1:01:55 | "you say you've vacated apartment number two. What's going on in apartment number one?"                                                                                   |  Question          |
| 1:02:57 | Findings: "I recognize that there are some points that the applicant has made that are factual"                                                                           |  In the record     |
| 1:03:06 | Findings: "This property is one of the largest lots in this neighborhood"                                                                                                 |  In the record     |
| 1:03:10 | Findings: "these are large units. We have a unit that's 1,800 square feet"                                                                                                |  In the record     |
| 1:03:15 | Findings: "the applicant had a hand in building this and chose to create these large units"                                                                               |  In the record     |
| 1:03:24 | Findings: "The neighborhood ... as presented at this application is an R2 zone"                                                                                           |  In the record     |
| 1:03:27 | Findings: "the spirit of that is a mix of single families and duplexes"                                                                                                   |  In the record     |
| 1:03:34 | Findings: "By the counts of the applicant's own submission, there are 41 single families, five two families, and one three family ... omitting the subject property"      |  In the record     |
| 1:03:48 | Findings: "this is not in the spirit of the ordinance and substantial justice is not done by creating the density of a three family in this district"                     |  In the record     |
| 1:04:18 | Findings: "I tend to agree that a three family may not diminish the values of the property around it. So ... I don't believe that the property values will be diminished" |  In the record     |

The contrast is the point of the first page. At South Lincoln Street the Vice Chair worked from the applicant's own exhibit, the district's stated intent, and the evidence in the file, and used his outside knowledge once — to reject a claim the applicant had made. An hour later, at Titus Avenue, he supplied the applicant the property-value opinion its engineer had told the Board it did not obtain.